

GENERAL SPECIFICATION G2.20

Completion and Handover Requirements

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G2.20 COMPLETION AND HANDOVER REQUIREMENTS

G2.20.1 Demolition

- (a) At the completion of the Contract, the Contractor shall be responsible for the removal of all security facilities from site.
- (b) All equipment and materials removed from site shall become the property of the Contractor. The salvage value shall be deemed to be included in the rates.

G2.20.2 Cleaning Up On Completion

- (a) The Contractor shall leave every part of the Work included in this Contract in a clean, sound and perfect condition free from all flaws, cracks and settlements whatsoever on completion of work. The Contractor shall touch up all paintwork and make good at his own expense any damage to the structure, fittings or decorations resulting from his operations to the complete satisfaction of the S.O.. On completion, huts, sheds. etc., shall be removed and the area occupied by same and used by the Contractor shall be left clean and perfect to the complete satisfaction of the S.O..

G2.20.3 Taking Over

- (a) Prior to taking over by the S.O. or agencies (such as PUB, NParks, LTA etc.), the Contractor shall, at his own expense, clean all the equipment and wash the entire work place, etc. to the satisfaction of the S.O..
- (b) If due to circumstances beyond the control of the Contractor, site testing cannot be carried out and/or the plant cannot be commissioned on completion of erection, the defect liability period shall only commence from the date on which the plant is commissioned and taken over by the Board.
- (c) Under these circumstances, the Contractor shall continue to insure the plant under the terms of the Contract until the day of commencement of the defects liability period and shall be responsible for maintaining and preserving the plant against loss, deterioration or damage while installed in the site awaiting taking over by the S.O..

G2.20.4 Guarantee of Plant for Defects

- (a) The Contractor shall guarantee that the equipment, materials, and workmanship furnished under this Contract will be as specified and will be free from defects for a period of 12 calendar months from the date of acceptance or any other greater period specified. In addition, the equipment furnished by the Contractor shall be guaranteed to be free from defects in design.
- (b) Within the guarantee period and upon notification of the Contractor by the Board, the Contractor shall promptly make all needed adjustments, repairs, or replacements arising out of defects which, in the judgement of the Board, become necessary during such period. The cost of all materials, parts, labour, transportation, supervision, special tools, and supplies required for correction or abnormalities shall be borne by the Contractor.
- (c) The Contractor shall extend the terms of this guarantee to cover repaired parts and all replacement parts furnished under the guarantee provisions for a period of a further 12 calendar months (or as specified) from the date of their installation.

- (d) If, within 7 days after the Board gives the Contractor notice of a defect, failure or abnormality of the Works, the Contractor neglects to make, or undertake with due diligence to make the necessary repairs or adjustments, the Board has the right to make the repairs or adjustments himself or order the Works to be done by a third party, the cost of which is to be paid by the Contractor.
- (e) In the event of an emergency where, in the judgement of the Board, delay would cause serious loss or damage, repairs and adjustments may be made by the Board, or a third party chosen by the Board without given notice to the Contractor, and the cost of the Works shall be borne by the Contractor.

G2.20.5 Completion of Defects Liability Period

- (a) The Contractor shall provide and make good at his own cost all defective materials and workmanship which may arise from any cause during the Defects Liability Period as defined in the Contract Documents, fair wear and tear being excepted.
- (b) Towards the end of the defects liability period, the Contractor at his own cost may be required to carry out such tests as required by the S.O. to reveal any defects (Contractor's liability or otherwise) in the completed works.
- (c) The Contractor shall ask for the Final Acceptance on the expiry of the Defect Liability Period, provided that the guaranteed conditions as stated in this Contract have been fulfilled during the Defects Liability Period.
- (d) The following points shall be verified by the Contractor in the presence of the S.O. for the Final Acceptance:
 - (i) Whether the defects, errors or omissions have been corrected which are previously determined;
 - (ii) Whether defects or deficiencies have become apparent which have not been notified previously;
 - (iii) Verification of the potential continuous usage of each unit and/or component; and
 - (iv) Whether each unit and/or component has maintained the characteristics stated in the Contract Documents during the Defects Liability Period i.e. excessive wears, electrical defects.
- (e) After satisfactory results from verification of the above-mentioned points have been obtained, Final Acceptance of the respective unit shall be made.
- (f) In case it is observed that defects, errors or omissions have not been corrected and consequently, a unit is found to be not ready for operation, or in the event of corrosion and other errors, outside those permitted by technical standards and regulations, have been observed in parts of the equipment, penalties and costs connected therewith shall be recovered from the Contractor.

G2.20.6 Warranties and Guarantees

- (a) The Contractor shall warrant against any defects and furnish a guarantee by the manufacturer(s)/supplier(s) for the satisfactory performance for the specified period for specific items of Plant, equipment or material as specified in the Specifications. The guarantees shall be in a written format to be approved by the S.O. with the Board named as the beneficiary.

- (b) The warranty and guarantee shall commence from the respective date(s) of the Certificate(s) of Substantial Completion for the phase or part of the Works that include the Plant, equipment or material. The Contractor and manufacturer(s)/supplier(s) shall warrant and guarantee the Plant, equipment or material is executed using good materials and with all due care and professional skill and further warrant:
 - (i) Against any defects in design (where applicable), materials and workmanship;
 - (ii) Maintaining the minimum performance requirements as specified in the Specifications; and
 - (iii) Conforming in all other respects to the requirements of the Specifications.
- (c) Product guarantee's format shall be given in accordance with the Standard Product Guarantee Format for the due and faithful observance and performance of the covenants or obligations.
- (d) Each of these guarantees shall be delivered to the S.O. two (2) weeks prior of the commencement of the respective works or products.
- (e) Where and when defects and/or non-performance appear, the Contractor shall make good, remove or replace at his own expense and to the satisfaction of the S.O. within twenty eight (28) days from the date of notification to the Contractor by the S.O. or otherwise as specified in the Contract, whichever is earlier.
- (f) If the Contractor refuses, neglects or fails to make good, remove or replace a defective and/or non performing Plant, equipment or material for any reasons whatsoever, within the above stated period, the S.O. shall be entitled to engage others to make good the defects and/or non-performance and charge the costs thereof to the Contractor.

END OF SECTION